MINISTERIAL CHARTER

for the

STATE FIRE COMMISSION

Issued in accordance with the Fire Service Act 1979

by the Minister for Police, Fire and Emergency Management



Hon Felix Ellis MP

Signed on and effective from 19 May 2025

PART A: PRELIMINARY

1. Authority and consultation

This Ministerial Charter is issued by the Minister for Police, Fire and Emergency Management (Minister), in accordance with section 73B of the *Fire Service Act 1979* (Act) and in consultation with the State Fire Commission (Commission) and the Treasurer as Stakeholder Minister.

2. Commencement, circulation and continuation

This Ministerial Charter comes into effect on the date of signing by the Minister. On that day, electronic copies will be provided to the Treasurer and the Commission.

This Ministerial Charter will remain in force while the legislative requirement for its existence remains and/or until it is amended, revoked or substituted.

3. Purpose

The purpose of the Ministerial Charter is to specify the Minister's broad policy expectations in the context of the legislated functions and powers of the Commission, across areas including but not limited to principal objectives, strategic direction, scope of activities, performance and financial considerations.

4. Limitations

While the Ministerial Charter may limit the Commission's functions and powers, and the performance and exercise of those functions and powers, it may not extend the Commission's functions and powers nor prevent the Commission from performing a function it is required to perform or comply with under the Act or any other legislation.

5. Requirement for compliance

The Commission must ensure that its business and affairs are conducted in a manner consistent with this Ministerial Charter.

PART B: PRINCIPAL OBJECTIVES AND STRATEGIC DIRECTION

1. Principal objectives

The Minister expects the Commission to adhere to principal objectives, which are to:

- perform its statutory functions and powers with due diligence and care, in accordance with the Act, this Ministerial Charter and any written directions provided by me, as responsible Minister
- effectively control and oversee the financial and non-financial operations of the Tasmania Fire Service (TFS) with respect to preventing and extinguishing fires and protecting life and property from fire
- oversee and monitor performance against functions and powers delegated to the Fire and Emergency Services Commissioner (TFS)
- operate in accordance with the principles and practices of good corporate governance and financial management, transparency, accountability, professionalism and evidence-led decision-making
- demonstrate compliance with relevant policy and strategic imperatives of the Tasmanian Government and the Department of Police, Fire and Emergency Management and all relevant federal and state legislation, regulations and by-laws, including the *Fire Service Act 1979,*

Emergency Management Act 2006, Work Health and Safety Act 2012, State Service Act 2000, State Service Principles and State Service Code of Conduct.

2. Strategic direction

The Minister expects the Commission to adopt a strategic approach while meeting its statutory obligations, fulfilling its functions, exercising its powers, managing its financial and business affairs and controlling the operations of TFS, specifically to actively pursue new and existing opportunities to demonstrate:

- merit-based employment practices and opportunities for employees and volunteers that encourage and embed TFS' organisational values and the principles of equality, diversity, inclusion, transparency, fairness, and integrity
- maintenance and continuous improvement of work-safe practices and systems to encourage and ensure greater safety and wellbeing for all workers
- safe, reliable, responsive and timely service to the Tasmanian community in relation to preventing and extinguishing fires and protecting life and property from fire and other hazards, supported by the adoption of and/or alignment with national fire service standards and practices wherever possible
- effective, contemporary standards of corporate governance and strong financial management
- continuous improvement in business practice and operations, including through the establishment of realistic and measurable Key Performance Indicators (KPIs) that align with other Australian fire and emergency services
- closer strategic alignment and greater collaboration between TFS and SES
- active participation in and contribution to national industry forums, including through membership of AFAC: *the Australian and New Zealand National Council for fire and emergency services*
- a child-safe organisational culture that demonstrates zero tolerance for all forms of child abuse, irrespective of when or where the abuse may have occurred or could potentially occur

PART C: CORE BUSINESS AND PERFORMANCE

1. Scope of activities

The Minister expects the core business of the Commission to focus on exercising its functions and powers in relation to preventing and extinguishing fires and protecting life and property from fire. This includes further and extensive work in preparedness and prevention of fire in the landscape through the Fuel Reduction Program which has proven effective in risk reduction.

The Minister also acknowledges and expects that the Commission will, wherever possible and within the context of performing its statutory functions, consider and accommodate the additional emergency management response and support roles and responsibilities assigned to TFS through the *Emergency Management Act 2006* and further detailed in the *Tasmanian Emergency Management Arrangements* (Issue 2).

Considering the potential future amendment or replacement of the Act, the Minister expects the Commission to provide constructive feedback and specialist input to the stakeholder consultation process to inform the appropriate execution and transfer of relevant functions and powers, if and when required.

The Minister expects the TFS and SES to work closely together as well as actively pursue opportunities in resource-sharing, efficiencies and synergies to grow capability as a combined organisation, to the benefit of the Tasmanian people. This is critical in the preparedness for an increase in the severity and number of natural disasters.

As a contemporary organisation, the Commission is to actively monitor emerging technologies and foster increased use of such technology to enhance operations, both internally (eg equipment, employee tools and systems) and externally (eg client-facing products and multi-hazard intelligence and communications)

2. Performance targets and indicators

The Minister expects the Commission to develop KPIs to measure and monitor its performance and include those KPIs and annual outcomes recorded against those KPIs in the Commission's Corporate Plan. Those KPIs are to align with financial management, customer service and operational response standards across the Commission and TFS' scope of activities and statutory functions and powers.

The Minister also expects the Commission to engage the services of suitably qualified individuals to conduct independent reviews of the Commission's performance every three years against the requirements of the Act, this Ministerial Charter, its Corporate Charter and Corporate Plan.

3. Financial management policy

The Minister expects the Commission to review and adjust as necessary the adequacy of its capital structure, anticipated income and forecast expenditure, and include that information in its Corporate Plan. The Minister also expects the Commission to approve and monitor all major capital investment programs and projects in the Corporate Plan. All disposals of assets and undertakings are to be carried out in accordance with the Act.

4. Borrowing policy

The Minister expects the Commission to avoid wherever possible or, where unavoidable, minimise its external borrowing requirements. This is expected to be achieved by using internally-generated funds as working capital and for capital expenditure. If borrowing is unavoidable, the Minister expects to be formally briefed on the Commission's financial position and intention to borrow before any monies are borrowed. If necessary, the Commission is expected to minimise the overall cost of borrowing, debt and asset management by seeking expert and informed advice on the most appropriate, cost-effective option, including seeking and obtaining advice from the Treasurer, as Stakeholder Minister.

5. Distribution policy

The Commission is not required to make financial returns under the Act.

6. Pricing policy

When setting fees and charges, the Minister expects the Commission to be cognisant of all economic influences and factors that are likely to impact the ability of customers to pay for the services provided or used.

7. Employment and conditions of employment policy

The Minister expects the Commission to adopt contemporary human resource management and industrial relations standards and applicable Tasmanian Government policies relevant to employment and employment conditions, including policies relating to anti-discrimination and bullying, redundancy, work health and safety, equality, diversity and inclusion, induction, employee screening

(including registration to work with vulnerable people) and safeguarding children and young people from abuse.

The Minister expects the Commission to negotiate enterprise and/or industrial agreements where practical to do so, and to be consulted before the Commission finalises industrial or enterprise agreements and/or makes any significant change to employment-related policies.

PART D: OTHER MATTERS

1. Extension of operations

The Minister expects to be consulted if the Commission intends to and before it establishes a business presence outside Tasmania. The Commission must seek the Minister's approval before establishing any subsidiaries or joint ventures.

2. Ministerial briefings, information and consultation

The Minister expects all briefings, reports and any information requested to be accurate, complete and provided in a timely manner.

The Minister expects to be consulted and briefed by the Commission on matters of policy and prior to the release of all public announcements involving significant policy or operational issues or changes. Where it is practical to do so, the Minister will consult with the Commission through the Fire and Emergency Services Commissioner and/or Chairperson prior to the release of any public announcement with significant operational or policy implications.